

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                               |                           |                                                                                                                                                                                                                       |
|---------------------------------------------------|---------------------------------------------------------------|---------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Gregory Morril                   | Team:<br>Team # 5                                             | CCRB Case #:<br>200605546 | <input type="checkbox"/> Force <input checked="" type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Thursday, 04/27/2006 7:55 PM  | Location of Incident:<br>Snediker Avenue and Riverdale Avenue | 18 Mo. SOL<br>10/27/2007  | Precinct:<br>75                                                                                                                                                                                                       |
| Date/Time CV Reported<br>Mon, 05/01/2006 11:30 AM | CV Reported At:<br>CCRB                                       | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Mon, 05/01/2006 11:30 AM                                                                                                                                                                |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. POM Scott Just      | 12018  | 897760 | 075 PCT |
| 2. POM Vincent Fontana | 15144  | 931673 | 075 PCT |
| 3. An officer          |        |        |         |

| Officer(s)              | Allegation                                                                                    | Investigator Recommendation |
|-------------------------|-----------------------------------------------------------------------------------------------|-----------------------------|
| A . An officer          | Discourtesy: An officer spoke obscenely and/or rudely to § 87(2)(b)                           | A . Unfounded               |
| B . POM Vincent Fontana | Abuse: Officer Vincent Fontana refused to provide his name and/or shield number to § 87(2)(b) | B . Unfounded               |
| C . POM Scott Just      | Abuse: Officer Scott Just refused to provide his name and/or shield number to § 87(2)(b)      | C . Unfounded               |

### Synopsis

§ 87(2)(b) alleges that on April 27, 2006, Officers Vincent Fontana and Scott Just stopped the vehicle in which she was the sole occupant at Snediker Avenue and Riverdale Avenue in Brooklyn, after another motorist reported that § 87(2)(b) was driving recklessly. § 87(2)(b) alleges that one of the two officers—she could not identify which one—demanded her “damn license” (**allegation A**). As the officers were issuing her a summons, § 87(2)(b) alleges that she asked both officers to provide their name and shield numbers and that they both refused to do so (**allegations B and C**). § 87(2)(b) was issued a summons for § 87(2)(b). When § 87(2)(b) filed this complaint with the CCRB, she was offered mediation but declined to participate in the process.

§ 87(2)(g)

it is recommended that **allegations A, B, and C** be closed as **unfounded**.

### Summary of Complaint

§ 87(2)(b) filed a complaint with the CCRB via telephone on May 1, 2006 (encl. 5) and sent the CCRB a notarized statement via mail on May 17, 2006 (encl. 7). § 87(2)(b) was never able to appear at the CCRB, because she was out of town for an extended period of time. § 87(2)(g)

§ 87(2)(b) a § 87(2)(b)-old female § 87(2)(b) that on April 27, 2006, she was driving down a street that leads into Hinsdale Street and Belmont Avenue in Brooklyn when another motorist attempted to get around § 87(2)(b)'s vehicle. This motorist stopped once he saw a marked patrol car and told the officers inside of the car something that she presumed was a lie, but § 87(2)(b) continued driving because she knew that she hadn't done anything wrong. Shortly thereafter, § 87(2)(b) got pulled over by this patrol car. Two officers approached and told her that she had been stopped for "dipping around" cars.

§ 87(2)(b) provided the shield numbers of the two officers involved-12018 and 15144-but could not remember which shield number corresponded with which officer. These two officers were identified by investigation as Officers Scott Just and Vincent Fontana respectively. One of the officers—who § 87(2)(b) identified as most likely being the officer whose shield number corresponds with that of Officer Just—told her to hand over her "damn license." As she was searching for her license within her large purse, the officer said, "find the damn license." Once she found it, the officer "snatched" it out of her hand. She was given a summons for "erratic driving." § 87(2)(b) asked both of the officers for their shield numbers, but they refused to provide this information. One of the officers (probably Officer Just, again identified by shield number) said to her, "You see me walking back to the van" and did not say his shield number and the other officer just grinned at her and refused to provide the information. Eventually, § 87(2)(b) was able to copy their shield numbers off of their chests. § 87(2)(b)

After this incident, § 87(2)(b) went to the 75th Precinct stationhouse to file a complaint § 87(2)(b). She gave him the summons and he stated that he would attempt to get the officers to dismiss it for her, but he later told her that the officers had refused to do so. § 87(2)(b)

§ 87(2)(g) In her sworn statement, § 87(2)(b) makes no mention of ever asking the officers' for their names or shield numbers or one of the officers asking for her “damn license.” § 87(2)(b) discusses her interaction with the officers in detail, noting that the officer asked her for her license and registration without saying why she had been pulled over. After she was unable to produce her license for four minutes, the officer told her to “hurry up” in an aggressive voice” and “screamed” for her to produce her license.

## Results of Investigation

### **POLICE OFFICER STATEMENTS**

**Officer Vincent Fontana (75<sup>th</sup> Precinct)** Subject Officer

#### **Traffic Summons and Memo Book**

Officer Fontana had lengthy entries in his memo book and on the back of the summons that he issued to § 87(2)(b) regarding this incident (encl. 8-9). In his memo book, Officer Fontana noted a vehicle stop at 7:55 a.m. and a summons issued for § 87(2)(b). Officer Fontana noted that the motorist § 87(2)(b) was “very belligerent.” Officer Fontana noted that he followed § 87(2)(b) for two blocks and that she refused to pull over for an additional two blocks. Officer Fontana noted that the impetus for the stop was that he was approached by a third-party motorist who informed him that § 87(2)(b) was driving erratically and was possibly intoxicated. Officer Fontana noted that he witnessed § 87(2)(b) pass two vehicles on the right side on a one-lane street. § 87(2)(b)

Officer Fontana’s entry on the back of the summons is consistent with his memo book entry. He further noted that § 87(2)(b) was very confrontational and refused to produce her driver’s license for “an extended period of time.” The description of the violation committed is “§ 87(2)(b)” on the front of the summons.

#### **CCRB Statement**

Officer Vincent Fontana was interviewed at the CCRB on June 23, 2006 (encl. 10). Officer Fontana, a § 87(2)(b) year-old white male, § 87(2)(b). On April 27, 2006, Officer Fontana worked from 4:00 p.m. until 1:35 a.m. with Officer Just, was assigned to the SNEU prisoner van, dressed in a modified uniform of a NYPD raid jacket, and assigned to a marked police van.

Officer Fontana testified that after being informed by an unknown motorist that § 87(2)(b) was driving recklessly, he observed her vehicle pass several cars on the right side and drive at an unsafe rate of speed. Although Officer Fontana did not have a radar gun to measure her exact rate of speed, he could tell that it was imprudent given the conditions on the street and the neighborhood. After following § 87(2)(b) for two blocks the officers initiated a vehicle stop by illuminating hazard lights and sirens. § 87(2)(b) did not pull over until two blocks later. Officer Fontana, who was the recorder in the vehicle, was not sure what side of the vehicle he initially approached but knows that he ended up interacting with § 87(2)(b) on the driver’s side of the vehicle. § 87(2)(b) was immediately belligerent and screamed at the officers, “Why are you running up on me?” § 87(2)(b) opened the door of her vehicle and made a motion like she was going to exit. The officers told § 87(2)(b) to stay inside and she complied. Officer Fontana had to ask § 87(2)(b) for her license and registration multiple times. Officer Fontana denied that he or his partner used the word “damn” when asking § 87(2)(b) for her license. § 87(2)(b) kept rummaging through he bag and appeared to be stalling for time. She did not produce her license for about five minutes. § 87(2)(b) took out a cell phone and told the officers that she was going to call IAB. While on the phone, § 87(2)(b) asked both officers for their names and shield numbers. Officer Fontana said that he had his shield hanging from his neck and displayed and that both he and Officer Just verbally stated their names and shield numbers. They heard § 87(2)(b) say this information into the telephone. Officer Fontana noted that his information was listed on the summons but he did not recall if he specifically mentioned this to § 87(2)(b).

§ 87(2)(b)

Officers Just and Fontana were later approached by an unknown officer from the 75<sup>th</sup> Precinct—possibly from the field training unit—who said that he knew § 87(2)(b) and that she offered to refrain from filing a complaint if Officer Fontana disposed of the summons. Officer Fontana said that it was illegal for him to do so and he refused to do so, because § 87(2)(b) was guilty of the infraction.

**Officer Scott Just (75<sup>th</sup> Precinct)** Subject Officer

Officer Scott Just was interviewed at the CCRB on June 23, 2006 (encl. 12). Officer Just, a § 87(2)(b)-old white male, § 87(2)(b) with blue eyes and salt and pepper hair. Officer Just's memo book notes that at 7:50 p.m., he picked up a job of a possible crime in progress (reckless driving) at Riverdale Avenue and Snediker Avenue. At 7:58 p.m., Officer Fontana (the RMP's recorder) issued a summons (encl. 11). § 87(2)(g)

While giving pursuit to § 87(2)(b)'s vehicle, Officers Just and Fontana decided that Officer Fontana was going to write § 87(2)(b) a summons, because Officer Just did not have any blank summonses with him. Officer Fontana approached the driver's side of the vehicle from the passenger seat of the RMP and Officer Just approached the passenger side. § 87(2)(b) immediately told the officers that she was going to call IAB and removed a cell phone from her purse and started talking to someone. § 87(2)(b) was saying into the phone that she had been stopped by two officers and repeated their RMP number into the phone. While on the phone, § 87(2)(b) was rummaging through her bag for five to ten minutes before she produced a driver's license and appeared to be stalling. While on the phone, § 87(2)(b) asked both officers for their names and shield numbers. Both officers responded by verbally conveying this information and § 87(2)(b) repeated the names and shields and relayed the information into the phone. Officer Just was wearing his shield around his neck but did not recall if it was displayed in front of or beneath his shirt. Officer Just denied that he or Officer Fontana used the word "damn" when requesting § 87(2)(b)'s identification. Officer Just confirmed that a rookie officer from the 75<sup>th</sup> Precinct later approached Officers Just and Fontana and asked them to void the summons that they had issued to § 87(2)(b) and that Officer Fontana had refused to do so.

## **POLICE DEPARTMENT DOCUMENTS**

### ***SPRINT Report***

The Monitoring and Analysis Section of the NYPD was unable to locate a SPRINT report for this incident (encl. 16b). § 87(2)(b) made no mention of calling IAB to the CCRB as the officers allege that she did, and therefore, the CCRB did not request a copy of this alleged call in its investigation.

## **DISPOSITION OF SUMMONS**

According to the Department of Motor Vehicles, the traffic summons issued to § 87(2)(b) in this case was dismissed on June 21, 2006 (encl. 14c).

## **CIVILIAN CRIMINAL CONVICTION HISTORY**

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

## **CIVILIAN CCRB HISTORY**

This complaint represents § 87(2)(b)'s first with the CCRB (encl. 4).

## **POLICE OFFICER CCRB HISTORY**

Officer Just, a member of the service for fifteen years, has three previously substantiated CCRB complaints. In 1994, the board substantiated a physical force allegation against Officer Just in case 9404245. The board made no disciplinary recommendation in that case and the NYPD's disposition of that case is not available. In 1997, the board substantiated allegations of excessive force, search of a person, and an unspecified other abuse of authority in case 9701500 and recommended a command discipline. In a DCT trial, Officer Just was found not guilty of these charges. In 1998, the board substantiated an excessive force allegation against Officer Just and recommended charges in case 9804412. Officer Just was found not guilty in a DCT trial. § 87(4-b) § 87(2)(g)

Officer Fontana, a member of the service for three years, has one previously substantiated complaint. In case 200507325, the board substantiated allegations of a stop and question and a search of person § 87(4-b) § 87(2)(g). The board recommended charges in that case and the NYPD's disposition is not yet available (encl. 2-3).

## **Conclusions and Recommendations**

### **Police Officer Identification**

Officers Just and Fontana both acknowledge interacting with § 87(2)(b). In her intake statement, § 87(2)(b) alleged that either Officer Just or Officer Fontana demanded her "damn license." As § 87(2)(b)

could not recall with certainty which of the two officers made this remark, the allegation was pleaded against “an officer.”

### Facts, Issues, and Credibility

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

- Allegation A- Discourtesy:** An officer spoke obscenely and/or rudely to § 87(2)(b)
- Allegation B- Abuse of Authority:** Officer Vincent Fontana refused to provide his name and/or shield number to § 87(2)(b)
- Allegation C- Abuse of Authority:** Officer Scott Just refused to provide his name and/or shield number to § 87(2)(b)

§ 87(2)(g) In her sworn statement to the CCRB, § 87(2)(b) did not mention any of the three allegations pleaded above. § 87(2)(g)

[REDACTED]

[REDACTED] Officer Fontana testified that he had his shield displayed around his neck, verbally conveyed this information, and clearly printed this information on the summons that he issued to § 87(2)(b) Officer Just wasn't sure if he had his shield displayed but confirmed that he verbally conveyed the information to § 87(2)(b) upon request. § 87(2)(g)

[REDACTED]

[REDACTED]

[REDACTED] It is therefore recommended that **allegations A, B, and C** be closed as **unfounded**.

|               |       |
|---------------|-------|
| Investigator: | Date: |
| Supervisor:   | Date: |
| Reviewed by:  | Date: |
| Reviewed by:  | Date: |